

1. ESTATE OF HOLBROOK, 26PR0191**Petition to Administer Estate**

This matter was continued from August 07, 2026, upon petitioner Cassandra Holbrook's ("petitioner" or "Ms. Holbrook") request. At that time, there was no proof of publication in the court's file (Prob. Code, § 8120) and the proof of service for the notice of hearing, filed June 25, 2026, was not signed under penalty of perjury. Counsel represented to the court that there was an issue with the bond in the previous administration of estate. To date, there is still no proof of publication and no proof of service signed under penalty of perjury in the court's file.

By way of background, on June 25, 2026, petitioner Cassandra Holbrook ("petitioner" or "Ms. Holbrook") filed the instant petition to administer estate. Ms. Holbrook's petition makes no mention of the related case, *Estate of Holbrook* (El Dorado Super. Ct., Case. No. 23PR0048).

In that case, on March 14, 2023, Robin Yorkus¹ petitioned the court to administer the estate. Ms. Holbrook objected to Ms. Yorkus's appointment and, on April 19, 2023, filed a competing petition to administer estate. On July 14, 2023, the court denied Ms. Holbrook's petition and granted Ms. Yorkus's petition. However, on October 21, 2024, without letters of administration ever formally being issued, Ms. Yorkus agreed to step down as personal representative of the estate; and Ms. Holbrook indicated she would step in and complete the probate of the estate. On November 8, 2024, the court formally relieved Ms. Yorkus as the personal representative of the estate (ordering Ms. Yorkus to relinquish any and all financial documents related to the estate to Ms. Holbrook's attorney) and appointed the public administrator to handle the affairs of the estate. Ms. Holbrook waived any further notice of hearings in the related case.

¹ Ms. Holbrook and Ms. Yorkus are both daughters of the decedent.

Ultimately, the public administrator did not accept appointment due to the lack of any real assets in the estate.

On February 21, 2025, Ms. Yorkus provided Ms. Holbrook's attorney the requested financial documents in open court.

On May 23, 2025, Ms. Holbrook's attorney represented to the court that Ms. Holbrook received funds in the amount of \$100,000 from Ms. Yorkus on behalf of the estate. Counsel indicated Ms. Holbrook would attempt to complete an accounting and file a new petition to appoint Ms. Holbrook as personal administrator of the estate. On November 21, 2025, counsel requested the court to appoint Ms. Holbrook as personal administrator without further filings. The court stated that counsel's request was only available if it was a successor petition. Counsel indicated he would re-file a petition for appointment of Ms. Holbrook as administrator.

TENTATIVE RULING # 1: APPEARANCES ARE REQUIRED AT 8:30 A.M., FRIDAY, SEPTEMBER 11, 2026, IN DEPARTMENT FOUR.